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Case Name: *Vu v. County of Santa Clara*

Case No.: 24CV442901

Defendant County of Santa Clara’s (“County”) request for judicial notice of the complaint, the proof of service of summons filed on July 17, 2024, the May 5, 2025 minute order of Hon. Pennypacker, the declaration of Long Do filed on July 9, 2025, the August 26, 2025 minute order of Hon. Pennypacker, and the August 1, 2024 notice of return without action is GRANTED. (Evid. Code §452, subds. (d), (h).)

County is correct that plaintiff Phuong Vu (“Plaintiff”) first attempted to present her claim on July 17, 2024 for an incident dated May 12, 2022. This is over a year beyond the six-month period to present her claim and thus, Plaintiff cannot demonstrate compliance with the Government Claims Act. (See Gov. Code § 911.2, subd. (a); see also *Last Frontier Healthcare Dist. v. Super. Ct. (Harper)* (2019) 33 Cal.App.5th 492, 497 (stating that “[n]o suit for damages may be maintained against a public entity unless a written claim has first been presented to it... [a] claim for personal injury must be presented ‘not later than six months after the accrual of the cause of action’”); see also *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990 (stating that “[c]laims for personal injury and property damage must be presented within six months after accrual... failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity”).) Plaintiff’s opposition neither addresses County’s argument, nor suggests how she might otherwise state a viable cause of action. (See *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (stating that when a party “fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived”); see also *Arega v. Bay Area Rapid Transit*

Dist. (2022) 83 Cal. App. 5th 308, 318 (stating same); see also *City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1302 (Sixth District stating that “[w]hen points are perfunctorily raised without adequate analysis and authority, we may treat them as abandoned or forfeited”); see also *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (California Supreme Court stating that “Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading”); see also *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 (stating same.) Accordingly, County’s demurrer to the complaint is SUSTAINED without leave to amend on this basis.

Additionally, County is also correct that the complaint filed on July 11, 2024, is more than one year from the date that Plaintiff discovered her alleged injury arising from her hospitalization, treatment and diagnosis of mental illness; therefore, her complaint is time-barred. (See Code Civ. Proc. § 340.5.) Accordingly, County’s demurrer to the complaint is SUSTAINED without leave to amend on this additional basis.

Defendant shall prepare and submit a proposed order consistent with the Court’s tentative ruling.

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The motion for limited discovery by plaintiffs SIU Holdings Limited (“SIU”), Axis Capital Partners Limited (“Axis”), and Ever Trump Investment Limited (“ETIL”) (collectively, “Plaintiffs”) came on for hearing before the Honorable Rafael A. Sivilla-Jones on May 14, 2026 at 9:00 a.m. in Department 6. The matter having been submitted, after full consideration of the authorities submitted by each party, and arguments made by the parties in their papers and the hearing, the court makes the following ruling:

Defendant Pouya Taaghol (“Defendant”) specially moves to strike the complaint, arguing that the defamation cause of action is barred by the common interest privilege, is nonactionable opinion and

that the purportedly defamatory statements are, in fact, true. Plaintiffs SIU Holdings Limited (“SIU”), Axis Capital Partners Limited (“Axis”) and Ever Trump Investment Limited (“ETIL”) (collectively, “Plaintiffs”) move for limited discovery, seeking to compel initial responses to requests for production numbers (“RFPs”) 2, 4, 5, 10, 12, 13, 16, 19, 20, 22, 24, and 26 through 30.

In opposition, defendant Pouya Taaghoul (“Defendant”) agrees to provide responses to RFPs 12, 13, 16, 22, 24 and 27-29 subject to a protective order with a “Highly Confidential” designation, acknowledging good cause for the discovery requests. (See *Balla v. Hall* (2021) 59 Cal.App.5th 652, 692 (stating that while “[a]s a general rule, discovery is stayed upon the filing of an anti-SLAPP motion... the trial court may... ‘for good cause shown... order that specified discovery be conducted’”).) As to these RFPs, Defendant provides no evidence that either SIU or Axis are competitors of BDF; at the very least, these plaintiffs would be entitled to the documents sought by the requests as they are directly relevant to Defendant’s arguments in support of his special motion to strike and Plaintiffs’ ability to oppose those arguments. Defendant’s opposition also fails to explain how requests to RFPs 12, 13 and 16 involve purported trade secrets. (See *City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1302 (Sixth District stating that “[w]hen points are perfunctorily raised without adequate analysis and authority, we may treat them as abandoned or forfeited”).) Defendant also neither establishes the existence of a trade secret (see *Amgen Inc. v. California Correctional Health Care Services* (2020) 47 Cal.App.5th 716, 733 (stating that “[t]he party claiming the trade secret privilege under Evidence Code section 1060 bears the burden of proving its entitlement to that privilege”)), nor adequately explains how the purported trade secret would be revealed by documents sought by RFPs 22, 24 and 27-29. Accordingly, Plaintiffs’ motion to compel initial responses to RFPs 12, 13, 16, 22, 24 and 27-29 is GRANTED. Parties are ordered to stipulate to the Model Confidentiality Order published by the Complex Division of the Santa Clara County Superior Court. Defendant shall provide verified, code-compliant responses without objections to RFPs 12, 13, 16, 22, 24 and 27-29 within 10 days of the Court’s order.

Further, Plaintiffs’ motion to compel initial responses to RFPs 2, 4, 5, 10, 19, 20 and 30 is also GRANTED. Plaintiffs show good cause for these requests as they seek evidence from Defendant needed to establish a prima facie case. (See *Balla, supra*, 59 Cal.App.5th at pp.691-692 (stating that

“[t]he trial court reasonably found good cause for discovery, noting its importance in showing actual malice and that the defendant is generally a primary source of evidence”); see also *Schroeder v. Irvine City Council* (2002) 97 Cal.App.4th 174, 191 (stating that “if the plaintiff makes a timely and proper showing in response to the motion to strike that a defendant or witness possesses evidence needed by plaintiff to establish a prima facie case, the plaintiff must be given the reasonable opportunity to obtain that evidence through discovery before the motion to strike is adjudicated... [t]he trial court, therefore, must liberally exercise its discretion by authorizing reasonable and specified discovery timely petitioned for by a plaintiff... when evidence to establish a prima facie case is reasonably shown to be held, or known, by defendant or its agents and employees”).) Defendant shall provide verified, code-compliant responses to RFPs 12, 13, 16, 22, 24 and 27-29 without objections within 10 days of the Court’s order.

Should Defendant withhold any documents to these RFPs 2, 4, 5, 10, 12, 13, 16, 19, 20, 22, 24, and 26-30 on the basis of the attorney-client privilege or the work product doctrine, Defendant shall also provide a privilege log with the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document’s date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted. (See *Catalina Island Yacht Club v. Super. Ct. (Beatty)* (2015) 242 Cal.App.4th 1116, 1130 (stating that “[a] privilege log must identify with particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit... [and] typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted”).)

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Case Name: *Stapley, et al. v. Madison Terrace LLC, et al.*

Case No.: 25CV478811

Defendants Madison Terrace, LLC (“Madison”), Louis J. Mariani, Dorcas Justine Mariani, Jack N. Mariani, Linda E. Mariani, Martin Mariani, Mariani Nut Company, Inc., Andrew Mariani, Adam Mariani, Kelly Mariani, Matthew Mariani, Justin Mariani, Megan Mariani Lombard, Benjamin Mariani, Chris Mariani, Benjamin 1993 Trust and Chris Mariani 1993 Trust (collectively, “Defendants”) demur to the first amended complaint (“FAC”). Defendants’ request for judicial notice of the complaint and its allegations is GRANTED as to their *existence*. (Evid. Code § 452, subd. (d).) Defendants’ request for judicial notice is DENIED as to the Articles of Organization, the Amendment to the Articles of Organization, and the Statements of Information. While the documents’ existence and filing dates with the California Secretary of State may be proper subjects of judicial notice, Defendants seek to establish certain facts regarding their own actions which are neither official acts of a legislative, executive or judicial department nor a fact or proposition that is not reasonably subject to dispute. (See Evid. Code § 452, subds. (c), (h); see also *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 115 (stating that “a court cannot by means of judicial notice convert a demurrer into an incomplete evidentiary hearing in which the demurring party can present documentary evidence and the opposing party is bound by what that evidence